

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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TIMOTHY EDISON

Plaintiff

**SUMMONS
WITH NOTICE**

-against-

Index No.
Date Purchased

CITY OF NEW YORK; Police Officer Victor Diaz
(Shield No. 13474) and JOHN and JANE DOE 1
through 10, individually and in their
official capacities the names John and Jane
Doe being fictitious, as the true names are
presently unknown),

Defendants

-----X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Plaintiff designates KINGS County as the place of trial. The basis of venue is residence of Plaintiff.

Plaintiff resides at: 401 76th Street, Apt. 3D, Brooklyn, N.Y.

Defendants' address is: One Police Plaza, New York, N.Y. 10007

NOTICE: This action is to recover damages for injuries to plaintiff caused by the defendant's negligence. The relief sought is monetary damages.

Upon your failure to appear, judgment will be taken against you by default for an amount to be determined, with interest and the costs of this action.

Dated: August 2, 2016


ROBERT MARINELLI, ESQ
305 Broadway-Suite 1001
New York, N.Y. 10007
212-822-1247

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
TIMOTHY EDISON,

Plaintiffs

COMPLAINT

INDEX NO.

-against-

CITY OF NEW YORK; Police Officer Victor Diaz
(Shield No. 13474) and JOHN and JANE DOE 1
through 10, individually and in their
official capacities the names John and Jane
Doe being fictitious, as the true names are
presently unknown),
-----X

PLEASE TAKE NOTICE that plaintiff, by his attorney, ROBERT
J. MARINELLI, alleges the following, upon information and
belief:

Preliminary statement

1. This is an action for damages arising from the arrest and subsequent imprisonment and prosecution of plaintiff Timothy Edison on May 6, 2015, without probable cause and in violation of his rights under state and federal law.
2. On May 6, 2015, POLICE OFFICERS JOHN and JANE DOE 1 - 10 ("Does"), acting within the scope of their employment and under the authority of the CITY OF NEW YORK ("CITY") and the NEW YORK CITY POLICE DEPARTMENT ("NYPD") falsely arrested, assaulted, battered plaintiff, used excessive force and made false allegations to the Kings County District Attorney's Office with respect to plaintiff.

3. On May 5, 2015, POLICE OFFICE Victor Diaz, Shield No. 13474 ("Diaz"), acting within the scope of his employment and under the authority of the CITY OF NEW YORK ("CITY") and the NEW YORK CITY POLICE DEPARTMENT ("NYPD") falsely arrested, assaulted, battered plaintiff, used excessive force and made false allegations to the Kings County District Attorney's Office with respect to plaintiff.
4. Plaintiff Timothy Edison seeks compensatory and punitive damages, attorneys' fees and costs with respect to the claims arising under federal law, and such other and further relief as the court deems just and proper.

Jurisdiction and Venue

5. The cause of action arose within Kings County, within the State of New York.
6. Plaintiff Timothy Edison is a resident of Kings County.

Parties

7. At all times hereinafter mentioned, plaintiff TIMOTHY EDISON is a natural person residing in Brooklyn, N.Y.
8. At all times hereinafter mentioned, defendants DOES were police officers, employees and agents of the CITY, acting within the scope of their employment and under color of state law, whose names and identities are not currently known to plaintiffs. Defendants DOES are sued in their individual capacities.
9. At all times hereinafter mentioned, defendant NYPD was an agency

of the CITY.

10. At all times hereinafter mentioned, defendant CITY was a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

Notice of Claim

11. With respect to plaintiff's claims arising under state law, a Notice of Claim was duly and timely served on the Comptroller of the City of New York within ninety (90) days of the accrual of the cause of action alleged in this Complaint.
12. At least thirty (30) days have elapsed since the Notice of Claim was served, and defendant CITY has neglected and/or refused to make adjustment, settlement or payment with respect to the injuries complained of.
13. This action has been commenced within one year and ninety days after the happening of the events upon which the claims are based.

Statement of Facts

14. At approximately 6:50 a.m. on May 5, 2015, plaintiff was lawfully within the vicinity of 92nd Street and 3rd Avenue, Brooklyn, NY.
15. Plaintiff was approached by several New York City Police Officers, including Diaz.
16. The defendants stopped plaintiff without probable cause or reasonable suspicion to believe that he had committed any crimes

or offenses.

17. Defendants, including Diaz, unlawfully seized plaintiff, and assaulted and battered him.
18. Specifically, defendants including Diaz, without justification or provocation, grabbed plaintiff, threw him on the ground, put their knees on him, and handcuffed him.
19. Despite the fact that they had no probable cause to believe that he had committed any crimes or offenses, the officers, placed plaintiff under arrest.
20. At no point did plaintiff resist arrest.
21. Plaintiff was taken to the 68th Precinct.
22. Plaintiff had sustained injuries to his head, knee, elbow, wrist, and finger. Plaintiff asked for medical attention, which the officers refused to provide.
23. At the precinct, defendants falsely informed employees of the Kings County District Attorney's Office that plaintiff had resisted arrest.
24. At no point did the officers observe plaintiff commit any crimes or offenses.
25. From the precinct, plaintiff was taken to Brooklyn Central Booking.
26. Plaintiff was subsequently arraigned in Kings County Criminal Court and was released on the following day.
27. Plaintiff's criminal charges were subsequently adjourned in

contemplation of dismissal.

28. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and damage to his reputation.

False Arrest
(State Claim)

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.
30. On May 6, 2015, plaintiff TIMOTHY EDISON was taken into custody against his will by defendants DOES, acting within the scope of their employment and under color of state law.
31. On May 6, 2015, there existed no probable cause that plaintiff TIMOTHY EDISON had committed any crime or offense.
32. On May 6, 2015, plaintiff TIMOTHY EDISON was aware of his arrests and at no time consented to his arrests.
33. The conduct of defendant DOES was wanton, willful and reckless and in total disregard for the federal and state law as to warrant the imposition of punitive damages.

False Arrest
(Federal Claim)

34. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

35. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

36. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

Assault and Battery
(State Law Claim)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. On May 6, 2015, defendants DOES, acting within the scope of their employment and under color of state law, intentionally and willfully placed plaintiff TIMOTHY EDISON in fear of harmful physical contact, and did subject him to such harmful physical contact.

39. The actions of defendants DOES were unjustified and unnecessary in the performance of their duties and were unreasonable and unwarranted.

40. The actions of defendants DOES constituted unlawful assaults and batteries upon plaintiff TIMOTHY EDISON.

41. The conduct of defendants DOES was wanton, willful and reckless and in total disregard for the federal and state law as to warrant the imposition of punitive damages.

Unreasonable Force
(Excessive Force)

42. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

43. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on plaintiff.

44. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

Claims arising under 42 U.S.C. §1983

45. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

46. As a result of defendants' illegal and unjustified actions, plaintiff was seized, arrested, assaulted, battered, and imprisoned in violation of the rights, privileges and immunities guaranteed under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

Negligent hiring, training, promotion and retention

47. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

48. The actions of defendants DOES were the result of a policy and custom of defendants CITY and NYPD of failing to hire, train, promote and retrain police officers properly.

49. Defendants CITY and NYPD, as a matter of policy and practice, has with deliberate indifference, failed to sanction or discipline police officers who use conduct illegal searches, execute arrests without probable cause, or misrepresent facts to the District Attorney.

50. Defendants CITY and NYPD were negligent in the hiring, training, supervision, discipline and control of defendants DOES, whose conduct is complained of herein.
51. Defendants CITY and NYPD were careless in failing to have in place, policies, procedures, rules and regulations to prevent, the type of inappropriate conduct complained of herein and in failing to terminate it swiftly, and in having policies which encouraged said conduct, and/or in failing to adhere to existing policies, procedures, rules and regulations.
52. Defendants CITY and NYPD were negligent in employing and retaining dangerous, incompetent and dishonest police officers, whom they knew or should have known were dangerous and a menace to the community, residents and in particular the plaintiff.
53. Said policies, practices and customs of City, complained of, as well as the omissions aforesaid, deprived the plaintiff of his rights and immunities secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution in violation of 42 U.S.C. §1983.

Prayer for Relief

Wherefore, plaintiff demands judgment against defendants as follows:

- a) Compensatory damages;
- b) Punitive damages;
- c) Attorneys' fees and costs pursuant to 42 U.S.C. §1983;

d) Interest, costs and disbursements;

e) Other and further relief as the court deems proper/

A jury trial is hereby demanded.



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305 Broadway, 10th Floor
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New York, N.Y.
August 2, 2016